



File No.: EXP202400062

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On January 24, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against CAJA RURAL DEL SUR, S.C.C. (hereinafter the respondent). After notifying the initiation agreement and analyzing the allegations presented, on December 3, 2024, the proposal for resolution was issued, which is transcribed below:

<<

File No.: EXP202400062 (PS/00011/2024)

PROPOSAL FOR RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

.....

3

FIRST

:

.....

3

SECOND:

.....

4

THIRD:

.....

20

FOURTH:

.....

20

FIFTH:

.....

20

SIXTH:

.....

20

SEVENTH:

.....

20

EIGHTH:

21

NINTH:

21

TENTH:

21

ELEVENTH

:

21

PROVEN FACTS

22

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/61

FIRST:

22

SECOND:

22

THIRD:

25

FOURTH:

28

FIFTH:

28

SIXTH:

29

SEVENTH:

30

EIGHTH:

30

NINTH:

31

TENTH:

33

ELEVENTH:

33

TWELFTH:

33

THIRTEENTH:

33

FOURTEENTH:

35

FIFTEENTH:

37

SIXTEENTH:

38

SEVENTEENTH:

39

EIGHTEENTH:

40

NINETEENTH:

40

TWENTIETH:

40

TWENTY-FIRST:

41

LEGAL GROUNDS

41

I Jurisdiction

.....
41

II Preliminary Issues

.....
41

III Description of the personal data breach

.....
43

IV Violation of Article 5.1.f) of the GDPR.

.....
.....
46

V Qualification for the infringement of Article 5.1.f) of the GDPR

.....
51

VI Proposal for sanction for the infringement of Article 5.1.f) of the GDPR

.....
52

VII Infringement of Article 32.1 of the GDPR

.....
54

VIII Infringement of Article 33 of the GDPR

.....
55

IX Response to the allegations made regarding the initiation agreement

.....
58

“FIRST. ON THE ACCUMULATION OF PROCEDURES TO THE ENTITIES OF THE GROUP.”

.....
58

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

3/61

“SECOND. THE NON-EXISTENCE OF GUILT OF CAJA RURAL DEL SUR IN THE PRESENT CASE”

.....

67

“THIRD. ON THE IMPACT ON THE PRINCIPLES OF SANCTIONING LAW
DERIVED FROM THE INTERPRETATION MADE BY THE AEPD”

.....

78

“FOURTH. ON THE ALLEGED VIOLATION OF ARTICLE 32.1 OF
THE GDPR”

.....

78

“FIFTH. ON THE ALLEGED VIOLATION OF ARTICLE 5.1.f) OF
THE GDPR”

.....

84

“SIXTH. ON THE ALLEGED VIOLATION OF ARTICLE 33 OF
THE GDPR

.....

86

“SEVENTH. VIOLATION OF THE PRINCIPLE OF PROPORTIONALITY IN
THE DETERMINATION OF SANCTIONS”

.....

86

PROPOSAL FOR RESOLUTION

.....91

BACKGROUND

FIRST:

On 14/12/2022, a security breach of the personal data of the entity belonging to the CAJA RURAL GROUP: CAJA RURAL DEL SUR, S.C.C. with NIF F91119065 (hereinafter, CAJA RURAL DEL SUR) was notified as the data controller. It should be noted that, as a result of the notifications to the Division of Technological Innovation of this Agency regarding the personal data breach in various Entities of the aforementioned Group, including the entity in question, related to a cyber incident, the General Subdirector of Data Inspection was ordered to carry out the appropriate preliminary investigations in order to determine a possible violation of data protection regulations.

1. Initially, the notifications of the breach were made by the data processor RURAL SERVICIOS INFORMÁTICOS S.L. (hereinafter RSI), in relation to 19 entities of the Group:

1. The initial notification and additional notification dates are:
12/12/2022 and 10/01/2023.

2. However, on 13/12/2022, 14/12/2022, and 15/12/2022, notifications of the breach were made by another 7 entities of the group, in their capacity as data controllers, despite the fact that the data processor is the same.

The breach notification forms are accompanied by the Security Incident Report prepared in all cases by RSI, the data processor.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
4/61

1. Date of breach detection: 09/12/2022

1. Date of breach occurrence: 10/11/2022

2. Summary of the notification:

(...).

1.

Type of affected data:

(...).

1. Approximate number of individuals whose personal data is collected, stored, or processed in any other way exclusively related to the processing in which the breach occurred, No. of individuals.

2. Approximate number of individuals whose data has been affected by the breach, No. affected (...).

3. Number of affected individuals informed (...).

4. No. communications (...).

SECOND:

As a result of the notifications to the Division of Technological Innovation of this Agency regarding personal data breaches in various Entities of the GRUPO CAJA RURAL related to a cyber incident, the General Sub-Directorate of Data Inspection is ordered to carry out the appropriate preliminary investigations in order to determine a possible violation of data protection regulations.

During the current proceedings, data has been obtained regarding the facts described in (...).

RSI has also been investigated in its capacity as data processor.

In order to investigate the occurrence of the described facts, on 29/03/2023, a request for information is made to RSI. The response to the request is received on 14/04/2023.

On 12/05/2023 and 27/09/2023, further information is requested from RSI, and on 26/05/2023 and 11/10/2023, responses are received at the electronic headquarters of the AEPD.

In order to introduce the applications involved in the breach that will be referenced throughout this report, the description provided in the documentation submitted by RSI in the context of the investigation proceedings is reproduced below:

(...).

Furthermore, RSI, in its document received by the AEPD on 14/04/2023, states:

(...).

Regarding the number of users served by Electronic Banking and the modes of access:

(...).

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

5/61

Regarding the chronology of events. Actions taken to minimize adverse effects and measures adopted for final resolution

In the Security Incident Analysis Report accompanying the breach notification form, it is noted:

(...)

From the areas of RSI responsible for fraud and the development of the NBE, an investigation begins to understand how the fraud occurred.

(...).

1. The mitigating measures taken on December 7 and 9 were:

(...).

2. (...).

Regarding the causes that made the breach possible

1. Factors that contributed to the occurrence of the incident

(...)

Regarding the affected data

The information that may have been accessed during the breach includes personal, contact, and financial data:

(...)

In the Security Incident Analysis Report accompanying the breach notification form, the type of information extracted by the cybercriminal and the impact on individual clients is analyzed, taking into account, among others, the following variables:

(...).

During the course of the investigation proceedings, additional information is requested from RSI regarding the data of clients who do not have an Electronic Banking Agreement to which the users involved in the breach may have accessed. RSI, in its response document, states that:

(...).

Regarding the data processing agreement

RSI provides the Activity Register of RSI and indicates that the processing in which the Electronic Banking operation is located is the Client Management processing, where RSI acts as the processor. RSI provides the Agreement modifying the data protection clause of the service provision contracts signed between CAJA RURAL DE JAÉN, BARCELONA AND MADRID, S.C.C. (data controller), and RSI (data processor).

RSI indicates that this Agreement was signed with the Entities in 2018 and that it is the same model for all of them.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/61

The Agreement includes, among other aspects:

2. The purpose of the Agreement is to establish the legal regime applicable to the processing of personal data that is processed or may be processed by the data processor, under the service contracts that are entered into between the parties, and which are under the ownership and control of the data controller.

3. The data processor undertakes to process the data in accordance with the instructions of the data controller.

4. The data processor shall apply technical and organizational security measures to ensure an adequate level of security.

5. The data processor is authorized to subcontract the companies reflected in Annex A of the Agreement – Subcontracting. The subcontractor, who also has the status of data processor, is likewise obliged to comply with the obligations established in the Agreement for the data processor and the instructions issued by the data controller.

Regarding security measures

RSI indicates that the planning for the development of the NBE extends from 2019 to 2022 and that during December 2019, a risk analysis of the NBE was conducted for both the Web version and the App. The following areas were analyzed:

(...)

(...)

Regarding the Customer Management processing, RSI indicates that a data protection risk analysis

has been conducted by the Data Protection Officer. This analysis is carried out with an initial review of the list of threats and the assessment of whether they apply to the processing or not, provides the threat assessment questionnaire, and a second part, where the risk analysis is conducted according to RSI's risk analysis methodology. The result of this analysis is provided.

RSI indicates that (...) and that in compliance with this line of work, three security evaluations have been conducted on Ruralvía Clásica, the reports of which are provided:

6. Report prepared by the company ***EMPRESA.1, dated 28/02/2022.

7. Report prepared by the company ***EMPRESA.1, dated 28/04/2022.

8. Report prepared by the company ***EMPRESA.2, continuous evaluation reflecting the tests conducted between 01/10/2021 and 30/04/2023, where all critical vulnerabilities are closed.

The report prepared by the Cybersecurity department of RSI is also provided, which lists the three security evaluations conducted by a third party and the status of the resolution of the detected vulnerabilities.

Additionally, RSI certifies that (...) an ethical hacking audit was conducted in June 2022 by an external provider. The audit report is attached, and it states:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/61

(...).

RSI, in its submission dated 11/10/2023 to the AEPD, explains:

The functionality subject to the attack, Single Sign On (SSO) used (...).

(...).

Furthermore, the audits that have been conducted subsequent to those mentioned in previous information requests in compliance with the fraud plan are listed:

(...).

Similarly, the latest audit of compliance with the security measures of (...) to comply with the Delegated Regulation PSD2 is provided, with the audited period from 15/12/2021 to 15/12/2022. The report is dated 15/12/2022. Specifically, it focused on reviewing the information associated with the security measures related to the enhanced authentication measures across the various channels and payment services offered by RSI. The Audit Report prepared by the firm (...) is provided.

To address the detected vulnerabilities in accordance with the level of compliance with the PSD2 regulation, an action plan is being implemented by RSI. The current status of the Action Plan is provided.

(...).

This is why the security measures implemented did not prevent the incident.

(...).

Technical and organizational measures adopted to avoid, as much as possible, incidents like the one that occurred.

In addition to the measures described above, RSI conveys in its response to the AEPD complaint:

(...)

RSI, in its submission dated 11/10/2023 to the AEPD, details the operation of these controls:

(...)

Throughout February 2023, the following actions were carried out:

(...)

Information on the recurrence of these events and the number of analogous events that have occurred over time

RSI states that these events are not recurrent, being this the first occasion they have occurred.

It also indicates that they have not received any news from their service regarding (...) data publication on the dark web.

C/ Jorge Juan, 6

THIRD:

On January 24, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against CAJA RURAL DEL SUR, for the alleged infringement of Article 5.1.f) of the GDPR, classified under Article 83.5.a) of the GDPR, for the alleged infringement of Article 32, classified under Article 83.4.a) of the GDPR, and for the alleged infringement of Article 33, classified under Article 83.4.a) of the GDPR, granting a period of ten days to submit allegations.

This initiation agreement, which was notified to CAJA RURAL DEL SUR, in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was recorded on January 24, 2024, as evidenced by the acknowledgment of receipt in the file.

FOURTH:

On January 29, 2024, CAJA RURAL DEL SUR submitted a written request for an extension of the deadline to present allegations and for a copy of the file.

FIFTH:

On February 5, 2024, the instructing body of the procedure agreed to extend the requested deadline by a maximum of 10 days, starting from the day after the receipt of the copy of the file, and that a copy of the file would be sent to CAJA RURAL DEL SUR.

The aforementioned agreement was notified to CAJA RURAL DEL SUR on February 5, 2024, as evidenced by the acknowledgment of receipt in the file.

SIXTH:

On February 22, 2024, the instructor of the file sent a written communication to the data processor indicating that "Since a large part of the documentation in the file has been provided by RSI through the General Electronic Registry, the registration numbers of the submitted documents were grouped by dates, so that within 10 working days, it could be communicated whether there were documents, or parts of documents, that it considered should not be provided to the accused party, due to reasons related to commercial secrecy, personal data protection, or others."

SEVENTH:

On March 7, 2024, the data processor stated "that regarding its transfer to the accused party, my client considers that it is not for them to assess the legality of such transfer and/or, if applicable, the existence of any impediments or limitations that the applicable regulations may establish."

EIGHTH:

On April 12, 2024, the instructor of the procedure sent two documents to the accused party: one, providing a copy of the administrative file in accordance with the provisions of Article 53.1 a) of the LPCAP, and, independently, a second one in which the key and hash were provided to allow access to the documentation included in the physical support.

NINTH:

On April 26, 2024, CAJA RURAL DEL SUR submitted a written statement of allegations summarizing the following:

1. That all procedures (26) opened against entities belonging to the Caja Rural Group be accumulated due to the close connection and substantial identity; the absence of culpability of the accused party in the present case;
2. The impact on the principles of sanctioning law as a consequence of the interpretation made by the AEPD;
3. Non-existence of a violation of Article 32.1 of the GDPR;
4. Non-existence of a violation of Article 5.1.f) of the GDPR;
5. Non-existence of a violation of Article 33 of the GDPR;
6. Violation of the principle of proportionality in the determination of sanctions;
7. That the proceedings be archived or a warning sanction be agreed upon or a significant reduction of the sanction.

TENTH:

On October 21, 2024, it was agreed to open a period for the practice of evidence, agreeing on the following:

- To consider reproduced for evidentiary purposes the complaint filed by the complainant and its documentation, the documents obtained and generated by the Inspection Services that are part of the file.
 - To consider reproduced for evidentiary purposes the allegations to the initiation agreement presented by the accused party and the accompanying documentation.
 - To request the accused party to provide documentation proving that, if applicable, it had instructed its data processor to notify the AEPD of the personal data breach subject to this sanctioning file and the accreditation of both the said instruction and the terms contained therein, as well as the date thereof.
- On November 5, 2024, the accused party responded to the evidence practiced, the content of which is in the file.

ELEVENTH:

Attached as an annex is a list of documents in the procedure.

From the actions taken in this procedure, the following have been accredited,

PROVEN FACTS

FIRST:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
10/61

As stated in the deed before notary Mr. A.A.A. CAJA RURAL DEL SUR, (...).

(...).

Likewise, as provided in its Bylaws, it enjoys its own legal personality and full capacity to act.

SECOND:

On April 26, 2024, CAJA RURAL DEL SUR submitted, along with the written allegations to the initiation agreement "Agreement to modify the data protection clause of the service provision contracts signed between CAJA RURAL DEL SUR and Rural Servicios Informáticos, S.L." dated May 25, 2018, signed on behalf of CAJA RURAL DEL SUR by the data controller.

In said Agreement it is specified:

"(...)"

In said agreement it is indicated that,

"The purpose of the Agreement is to establish the legal regime applicable to the processing of personal data that is processed or may be processed by the data processor, by virtue of the service provision contracts that are signed between the parties, and that are under the ownership and control of the data controller.

The data processing foreseen is strictly necessary for the provision of the services provided in the main contract. The treatments that could be carried out by RSI, the type of information to be processed, and the categories of data subjects whose data could be processed are defined."

In the Agreement itself, it is indicated, in section 3 regarding the Obligations of the Data Processor, that:

"The Data Processor and all its personnel are obliged to:

a) Use the personal data subject to processing, or those collected for its inclusion, only for the purpose of this assignment. Under no circumstances may the data be used for any other purpose, whether for its own or for third parties. To carry out any other activity aimed at the processing or use of the data files of the Data Controller, prior written consent from the Data Controller will be necessary.

b) Process the data in accordance with the instructions of the Data Controller. (...)

(...)"

C/ Jorge Juan, 6
www.aepd.es

11/61

Regarding the notification of “data security breaches,” it is specified in section 3.3 that:

“The Data Processor shall notify the Data Controller, without undue delay, and in any case, before the maximum period of 36 hours, and through the DPD, of any breaches of the security of personal data under its responsibility of which it becomes aware, together with all relevant obligations for the documentation and communication of the incident. (...)”

Section 3.4 regarding security measures adds that:

“The Data Processor, in accordance with the provisions of Article 32, shall apply those technical and organizational measures appropriate to ensure a level of security adequate to the risk of processing detected in each case, considering the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying probability and severity of risks to the rights of individuals at any given time.

In any case, it must implement mechanisms equivalent to those used by the Data Controller to:

- a. Ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services.
- b. Restore the availability and access to personal data quickly in the event of a physical or technical incident.
- c. Regularly verify, evaluate, and assess the effectiveness of the technical and organizational measures implemented to ensure the security of processing.
- d. Pseudonymize and encrypt personal data, where appropriate.

The technical and organizational measures to be implemented by the Data Processor are those reflected in Annex B of this agreement - Security Measures.”

The processor is authorized to subcontract to the companies reflected in Annex A of the Agreement – Subcontracting. The subcontractor, who also has the status of data processor, is equally obliged to comply with the obligations established in the Agreement for the data processor and the instructions issued by the controller.

Regarding the obligations of the data controller, it is indicated in section 4 of the Agreement:

“It is the responsibility of the data controller:

a)

“To provide the Data Processor with the necessary data for the provision of the service.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

12/61

b) In the event that it is legally required, conduct an impact assessment on the protection of personal data for the processing operations to be carried out by the Data Processor.

c) Carry out the necessary prior consultations.

d) Ensure, both prior to and throughout the processing, compliance with the GDPR by the Data Processor.

e) Supervise the processing, including conducting inspections and audits.” (the underlining is ours)

In section 5, the DPO of the processor and the controller of the processing are identified respectively.

Regarding CAJA RURAL del SUR, the DPO is listed as:

“Identification B.B.B.

Contact ***EMAIL.1

Regarding RURAL SERVICIOS INFORMATICOS, S.L., the DPO is listed as:

“Identification C.C.C.

Contact ***EMAIL.2”

Section 6 of the Agreement on “Liability” states that,

“If the Processor, or in its case, the contractors, breach this Agreement or the applicable regulations by

determining the purposes and means of processing, they will be considered responsible for the processing concerning such processing. In the event that a supervisory authority sanctions the Data Controller as a direct consequence of the Data Processor's failure to comply with the stipulations of this Agreement, the Processor shall indemnify the Data Controller as stipulated in the liability clause of the current framework contract between the parties" (the underlining is ours)

THIRD:

In the "Agreement to modify the data protection clause of the service provision contracts," signed between CAJA RURAL DEL SUR and RSI, signed in Gijón on May 25, 2018, Annex B - Security Measures to the Agreement to modify the data protection clause of the service provision contracts indicates that RSI has the following certifications:

"(...)"

Furthermore, in the "Agreement to modify the data protection clause of the service provision contracts," it is indicated that RSI has the following measures:

(...)

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

13/61

FOURTH:

On December 14, 2022, a personal data breach of CAJA RURAL DEL SUR was reported to the Division of Technological Innovation of this Agency, with entry number (...). This notification was sent by RSI, the data processor of CAJA RURAL DEL SUR. Attached to this notification is the "Security Incident Analysis Report."

On January 11, 2023, CAJA RURAL DEL SUR made an additional notification to that described in the previous section, with entry number (...).

FIFTH:

CAJA RURAL DEL SUR had an electronic banking application called Ruralvía Clásica for the purpose of providing online banking services to its customers.

CAJA RURAL DEL SUR wanted to change this application to a new electronic banking application called Nueva Banca Electrónica (NBE).

(...)

SIXTH:

Regarding the establishment of a banner in the Ruralvía Clásica application that linked to the new NBE application and its operation, in the "Security Incident Analysis Report," dated December 9, 2022, which RSI provided in relation to the personal data breach of CAJA RURAL DEL SUR, it is indicated:

"(...)"

Additionally, on April 14, 2023, in response to the request made by the AEPD in the context of the preliminary investigation proceedings, RSI responded that:

(...).

RSI, in its submission dated October 11, 2023, Response 3 Complaint AEPD of entry REGAGE23e00068900170, indicates that,

"(...)".

SEVENTH:

(...)

On April 14, 2023, in response to the request made by the AEPD in the context of the preliminary investigation proceedings, a document was submitted named "Web Application Audit" in which it is indicated that for each user and for each open user session, a token is generated that identifies and individualizes them:

(...)

EIGHTH:

(...)

NINTH:

Regarding how the personal data breach occurred, on April 14, 2023, RURALVÍA, in response to the information request made by this Agency, states the following,

“(…)

(…)”.

Additionally, in the “Final Security Incident Analysis Report,” dated December 30, 2022, which RSI provided in relation to the personal data breach of CAJA RURAL DEL SUR, it is indicated in section 1.4.2, “How was the problem detected or how did it happen?” that:

“(…)”

TENTH:

Furthermore, in the “Final Security Incident Analysis Report,” dated December 30, 2022, which RSI provided in relation to the personal data breach of CAJA RURAL DEL SUR, in section 1.4.1, “What happened?”, it is explained that the personal data breach occurred due to a vulnerability in the SSO system, indicating that:

“(…)”

ELEVENTH:

Regarding the attack pattern used by the cybercriminal, on April 14, 2023, in response to the request made by the AEPD in the context of the preliminary investigation proceedings by RSI, it is indicated that,

“(…)”.

The same provision is contained in section 1.4.2 of the “Final Security Incident Analysis Report,” dated December 30, 2022, which RSI provided in relation to the personal data breach of CAJA RURAL DEL SUR.

TWELFTH:

Regarding the causes that allowed the personal data breach, in the “Final Security Incident Analysis Report,” dated December 30,

15/61

2022, which RSI provided in relation to the personal data breach of CAJA RURAL DEL SUR, it is indicated in section 3, “Cause Analysis,” that:

“(…)”

THIRTEENTH:

In response to the information request made by the AEPD within the framework of the preliminary investigation proceedings, RSI replied on May 26, 2023, providing as document 8 an email dated September 28, 2022, before the highest volume of accesses occurred (between November 10 and 23 of the same month) and the personal data breach was detected, sent by (...):

In the same vein, as indicated, on April 14, 2023, in response to the request made by the AEPD within the framework of the preliminary investigation proceedings, RSI replied that,

(…)

On April 14, 2023, in response to the request made by the AEPD within the framework of the preliminary investigation proceedings, document 9 titled “Web Application Audit” was provided, in which it was indicated that,

“(…)”.

FOURTEENTH:

On April 14, 2023, in response to the request made by the AEPD within the framework of the preliminary investigation proceedings, document 9 titled “Web Application Audit” was provided, in which it was examined (...).

(…)

FIFTEENTH:

Regarding the detection of the personal data breach, in the “Final Security Incident Analysis Report,” dated December 30, 2022, which RSI provided in relation to the personal data breach of CAJA RURAL DEL SUR, it is indicated in section 1.4.1, “What has happened?”, that:

(…)

Therefore, although the breach was detected on December 7, 2022, prior accesses to that date are

confirmed, noting that the highest volume of accesses occurred between November 10 and November 23, 2022.

Regarding the measures adopted on November 23, 2022, the aforementioned document indicates that,

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

16/61

“(…)”

Therefore, these measures were adopted before the personal data breach was detected (on December 7, 2022) and as a consequence of actions to increase the security of electronic banking.

SIXTEENTH:

Regarding the mitigating measures applied after the personal data breach, in the “Final Security Incident Analysis Report,” dated December 30, 2022, which RSI provided in relation to the personal data breach of CAJA RURAL DEL SUR, it states that,

(…)

SEVENTEENTH:

Subsequently, within the framework of the definitive implementation of the new NBE application, a series of actions are carried out, as noted in the “Final Security Incident Analysis Report,” dated December 30, 2022, which RSI provided in relation to the personal data breach of CAJA RURAL DEL SUR,

(…)

EIGHTEENTH:

Regarding the personal data accessed by the attacker, in the “Final Security Incident Analysis Report,” dated December 30, 2022, which RSI provided in relation to the personal data breach of CAJA RURAL DEL SUR, it indicates which personal data would have been accessed,

“(…)”

NINETEENTH:

The breach notification forms that accompany the Security Incident Report prepared in all cases by RURAL SERVICIOS INFORMÁTICOS, S.L., responsible for the processing, as stated in the preliminary investigation report dated November 27, 2023, determine that the number of affected individuals by the personal data breach of CAJA RURAL DEL SUR is 36 clients.

TWENTIETH:

During the period of evidence practice referred to in the Tenth Background of Fact, CAJA RURAL DEL SUR provided a responsible declaration of “(…)”.

TWENTY-FIRST:

According to the diligence dated January 22, 2024, in the file, the business volume (gross margin) of CAJA RURAL DEL SUR S.C.C. during the year 2022 amounts to 200,000,000 euros.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

17/61

LEGAL GROUNDS

I Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish

Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II Preliminary Issues

Below is a detailed list of the relevant legal concepts for this Proposal for Resolution, in accordance with the definitions in Article 4 of the GDPR (the relevant parts are highlighted):

"Article 4 Definitions

For the purposes of this Regulation, the following shall be understood as:

(...)

1) "personal data": any information relating to an identified or identifiable natural person ("the data subject"); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

(...).

2) "processing": any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use,

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

18/61

communication by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction;

The processing in this case has consisted of a set of operations for the retrieval and consultation of the personal data of the data subjects.

7) "data controller" or "controller": the natural or legal person, public authority, service, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be laid down by the law of the Union or of the Member States;

The legal entity that determines the purposes and means of processing is CAJA RURAL DEL SUR, as a provider of banking services, and the data subjects in this case are the clients linked to the banking entity through a contract. CAJA RURAL DEL SUR collects the clients' data and decides on the purposes and means of the set of operations carried out on personal data by automated procedures.

8) "processor" or "processor": the natural or legal person, public authority, service, or other body which processes personal data on behalf of the controller;

(...)

CAJA RURAL DEL SUR has entrusted RURALVÍA S.L., by contract dated May 25, 2018, with the execution of the necessary security measures for the set of automated operations for the processing of clients' personal data, within the framework of its banking service contracts.

12) "personal data breach": a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to personal data transmitted, stored, or otherwise processed;

A personal data breach has occurred due to the unauthorized access of a third party (a hacker) to the personal data of CAJA RURAL DEL SUR's clients.

The entity carries out this activity in its capacity as data controller, as it is the one that determines the purposes and means related to the processing of personal data, pursuant to Article 4.7 of the GDPR. Therefore, if it decides the "why" and the "how" personal data should be processed, it must assume its responsibility.

Moreover, the data controller must also ensure the implementation of technical and organizational

measures that guarantee the security of personal data when carrying out the processing. And be able to demonstrate compliance with the GDPR and the LOPDGDD.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
19/61

In this case, there is a security incident, categorized as a personal data breach, involving unauthorized access to personal data.

It should be noted that the identification of a personal data breach does not directly imply the imposition of a sanction by this Agency, as it is necessary to analyze the diligence of the data controllers and processors and the security measures applied.

Among the principles of processing provided in Article 5 of the GDPR, the integrity and confidentiality of personal data are guaranteed in paragraph 1.f). Meanwhile, the security of personal data is regulated in Articles 32 and 33 of the GDPR, which govern the security of processing, notification to the supervisory authority, and communication to the data subject, respectively.

As previously mentioned, it is presumed that the data controller is the entity that has the actual capacity to exercise control over the data, who determines the why and how the data should be processed.

III Description of the personal data breach

CAJA RURAL DEL SUR had an electronic banking application called Ruralvía Clásica for the purpose of providing online banking services to its customers.

For a customer to enter the Ruralvía Clásica application and log in, they needed to enter their identifier, password, and NIF.

(...)

IV Violation of Article 5.1.f) of the GDPR.

Article 5.1.f) “Principles relating to processing” of the GDPR states:

“1. Personal data shall be:

(...)

f) processed in such a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures (‘integrity and confidentiality’).”

(...)

The facts revealed in this procedure constitute a personal data breach consisting of a loss of confidentiality of personal data, considering that the regulations on the protection of personal data have been violated. The present facts have as the respondent the data controller, CAJA RURAL DEL SUR, as determined in the proven facts.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

20/61

Thus, as stated in the seventeenth proven fact, regarding the personal data accessed by the attacker, the “Final Security Incident Analysis Report,” dated December 30, 2022, indicates that,

“4. The information that could have been accessed includes personal and contact data such as:

“(...)”.

Although the personal data breach was detected on December 7, 2022, prior accesses to that date are confirmed, with the highest volume of accesses occurring between November 10 and November 23, 2022.

In this regard, in the aforementioned report of December 30, 2022, as stated in the eighth and fourteenth proven facts, it is indicated in section 1.4.2, How was the problem detected or how did it

happen?, that:

(...)

The attacker was able to access those personal data of the customers of CAJA RURAL DE GIJON due to the lack of appropriate technical and organizational measures prior to the occurrence of the personal data breach.

First, it should be noted that, as stated in the eleventh proven fact, regarding the causes that allowed the personal data breach, in the "Final Security Incident Analysis Report," dated December 30, 2022, in section 3, "Cause Analysis," it states:

(...)

Second, in the fifteenth proven fact, the mitigating measures implemented are recorded, highlighting the absence of appropriate technical and organizational measures to prevent the occurrence of the breach, emphasizing, for these purposes,

(...)

In conclusion, and in accordance with all that has been indicated, it has been established that the violation of the principle of confidentiality that indeed occurred, as the attacker accessed multiple personal data of 36 customers of CAJA RURAL DEL SUR, was possible due to the lack of appropriate technical and organizational measures highlighted by the aforementioned vulnerabilities.

The documentation in the file provides clear evidence that CAJA RURAL DEL SUR violated Article 5.1.f) of the GDPR, "Principles relating to processing," by failing to adequately guarantee the confidentiality and integrity of personal data as a result of the security breach that occurred.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

21/61

In accordance with the evidence available in this proposal for the resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement attributable to CAJA RURAL DEL SUR, for violation of Article 5.1.f) of the GDPR.

V Classification for the infringement of Article 5.1.f) of the GDPR

The aforementioned infringement of Article 5.1.f) of the GDPR constitutes the commission of the infringements classified in Article 83.5 a) of the GDPR, which considers that the infringement of "the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9" is subject to sanctions, in accordance with paragraph 5 of the aforementioned Article 83 of the cited Regulation, "with administrative fines of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount."

The LOPDGDD in its Article 71, Infringements, states that: "Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

And in its Article 72, it considers for the purposes of prescription that: "Very serious infringements are:

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and will prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)"

VI Proposal for sanction for the infringement of Article 5.1.f) of the GDPR

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 is, in each individual case,

effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damage suffered by the data subjects;
- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have applied in accordance with Articles 25 and 32;
- e) any previous infringement committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," establishes that:

"2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having a data protection officer when not mandatory.
- h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

23/61

In accordance with the transcribed provisions, for the purpose of determining the amount of the sanction to be imposed in the present case for the infringement of Article 5.1.f) of the GDPR, classified under Article 83.5.a) of the GDPR for which CAJA RURAL DEL SUR is held responsible, the following factors are deemed concurrent:

- The nature, severity, and duration of the infringement; the facts revealed affect a basic principle related to the processing of personal data, namely the confidentiality and integrity of such data, which the regulation penalizes with the utmost severity as the consequence of the personal data breach allows unauthorized third parties access to personal data, with the potential harm that this may entail.

- The number of affected parties: (...).
- Regarding the level of damages and losses caused: it must be considered high since, in addition to personal data (...), economic and financial data must also be included as users (...). Additionally, it should be noted that this situation allows access to the data, which can lead to the materialization of the risk of identity theft, among others (Article 83.2.a) of the GDPR).
- The intent or negligence in the infringement. A lack of diligence is observed in complying with the obligations imposed by data protection regulations, as it enabled access by cybercriminals to personal data, violating its confidentiality; in this regard, the SAN of 17/10/2007 can be cited, which, although issued before the GDPR came into force, is perfectly extrapolatable to the case we are analyzing. The ruling, after referring to the fact that entities whose activities involve continuous processing of customer and third-party data must observe an adequate level of diligence, specified that "(...) the Supreme Court has understood that there is negligence whenever a legal duty of care is neglected, that is, when the offender does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be particularly weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard" (Article 83.2.b) of the GDPR).
- The activity of the allegedly infringing entity is linked to the processing of personal data of both clients and third parties. In the activity of the claimed entity, the processing of personal data is essential, so given its object and business volume, the significance of the conduct subject to this claim is undeniable (Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k).

For the purpose of deciding on the proposal for the fine and its amount, in accordance with the available evidence, taking into account the criteria of Article 83.2 of the GDPR.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

24/61

GDPR regarding the infringement committed, violation of Article 5.1(f) of the GDPR, it is considered to propose a sanction of 20,000 euros.

VII Violation of Article 32.1 of the GDPR

Article 32 of the GDPR "Security of processing" establishes that:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
 - b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
 - c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
 - d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.
2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.
3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this Article.
4. The controller and the processor shall take measures to ensure that any person acting under the

authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law.” Upon reviewing the allegations made by the responding party, and in consideration of the same, reviewing the documentation in the administrative file and that provided by the responding party, it is evident that all the technical and organizational security measures whose absence has been proven, directly enabling the personal data breach, have not resulted in a violation, in this specific case, of Article 32 of the GDPR as the absence of other independent technical and organizational security measures unrelated to the personal data breach has not been demonstrated.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

25/61

VIII Violation of Article 33 of the GDPR

Article 33 of the GDPR, “Notification of a personal data breach to the supervisory authority,” establishes that,

“1. In the case of a personal data breach, the controller shall notify the competent supervisory authority in accordance with Article 55 without undue delay and, where feasible, no later than 72 hours after becoming aware of it, unless the personal data breach is unlikely to result in a risk to the rights and freedoms of natural persons. If the notification to the supervisory authority does not take place within 72 hours, it shall be accompanied by reasons for the delay.

2. The processor shall notify the controller without undue delay of any personal data breaches of which it becomes aware.

3. The notification referred to in paragraph 1 shall, at a minimum:

a) describe the nature of the personal data breach, including, where possible, the categories and approximate number of data subjects affected, and the categories and approximate number of personal data records affected;

b) communicate the name and contact details of the data protection officer or other contact point where more information can be obtained;

c) describe the possible consequences of the personal data breach;

d) describe the measures taken or proposed by the controller to remedy the personal data breach, including, where appropriate, the measures taken to mitigate the possible adverse effects.

4. If it is not possible to provide the information simultaneously, and to the extent that it is not possible, the information shall be provided in phases without undue delay.

5. The controller shall document any personal data breach, including the facts relating to it, its effects, and the remedial measures taken. This documentation shall enable the supervisory authority to verify compliance with the provisions of this Article.”

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

26/61

On October 21, 2024, it was agreed to open a period for the practice of evidence, in which point 3 states: It is agreed to require CAJA RURAL DEL SUR to provide the following information and/or documentation:

"Provide documentation proving that, if applicable, it had commissioned or instructed its data processor to notify the AEPD of the personal data breach subject to this sanctioning file (art. 33 GDPR). Proof of both the commission and the terms thereof and its date. The result of this evidence may lead to the carrying out of others. In its response, it must indicate the reference of the file that appears in the heading of this document."

The summoned party submitted in response to this request on November 5, 2024, the following documents:

Document number 1: Email dated December 14, 2022, where RSI, in its capacity as data processor for CAJA RURAL DEL SUR, communicated the security incident to it, indicating that they were preparing a report on the matter, outlining next steps (notification to the AEPD and communication to the affected parties) and requesting validation from CAJA RURAL DEL SUR as the data controller.

Document number 2: Declaration of responsibility dated November 4, 2024 from (...).

After analyzing the documentation submitted by CAJA RURAL DEL SUR referred to in the Twentieth Proven Fact, RSI (responsible declaration in a private document by the highest authority of the entity, based on a request for prior instructions from the data processor and the immediate subsequent action of notifying the personal data breach to the AEPD) it is determined that the summoned party has provided in response to the evidence practice carried out by this Agency on October 21, 2024, regarding the accreditation of the instructions given to its data processor, to proceed with the notification on its behalf to the AEPD of the personal data breach subject to the aforementioned procedure, in accordance with Article 33 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, concerning the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter "GDPR").

Therefore, it must be concluded that, after analyzing the investigated facts, the allegations made by the summoned party, and the evidence provided in the procedure, considering the circumstances concurrent in the specific case, the filing of the alleged infringement in relation to Article 33 of the GDPR would be appropriate.

IX Response to the allegations made regarding the initiation agreement

In relation to the allegations put forward by CAJA RURAL DEL SUR regarding the initiation agreement, a response is provided to them in the order in which they are presented in their writing:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

27/61

“FIRST. ON THE ACCUMULATION OF PROCEDURES AGAINST THE ENTITIES OF THE GROUP.”

1. Preliminary Considerations

According to CAJA RURAL DEL SUR: “All the initiation agreements in the files that have just been referenced stem from the security breach analyzed by the Initiation Agreement” and subsequently states that “we are faced with a single event, related to a unique breach, suffered during the development of the aforementioned tool carried out by RSI in its capacity as data processor, which, however, is fragmented by the AEPD into twenty-six differentiated procedures processed against twenty-six different entities.”

In response to these preliminary considerations, it should be noted that the responding party confuses the fact that the factors that determined the vulnerability are similar in all the procedures initiated by this Agency with the notion that there has only been a single breach of personal data.

We are dealing with incidents that have affected (...) which are completely independent, both legally and economically. Each of these entities is responsible for the processing of their clients' data in a differentiated manner, and, consequently, there are as many personal data security breaches as there are data controllers that have failed to comply with the obligations imposed by the GDPR. Each entity is responsible for the processing of its own data and regarding its own clients.

All the entities referred to by the responding party in its written allegations had contracted with RSI, (...).

However, the fact that RSI was the same data processor for all the Entities does not determine that one can speak of “a single event, related to a unique breach.”

Each entity, as the data controller of its clients, autonomously made the decision to contract with RSI as the data processor, for which each of them signed their own data processing agreement, on different dates, signed by different persons with sufficient authority for this purpose in each of the rural banks and citing their different data protection delegates, who are not the same.

Furthermore, as also stated in the proven facts, both the “Security Incident Analysis Report,” dated December 9, 2022, and the “Final Security Incident Analysis Report,” dated December 30, 2022, were

carried out individually for each of the rural banks, containing their own specificities.

Likewise, once the personal data breach occurred, the actions of each of the entities were not the same, with each acting autonomously.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

28/61

both regarding the AEPD (some entities have notified the personal data breach directly and others have entrusted their data processor to carry it out), as well as their respective clients and independently of the actions of others.

2. On the accumulation of administrative procedure files.

In this allegation, the responding party considers that: "The legal regime of the accumulation of procedures, as well as of processes, in the administrative sphere responds to the central idea of connectivity, that is, that the instructional work that must be carried out is favored by the overall appreciation of the issue raised and the possibility that the joint viewing work allows for a better assessment of the elements that enable the application of the norm to the specific case."

Article 57 of the LPACAP on the accumulation of procedures establishes that: "The administrative body that initiates or processes a procedure, regardless of how it was initiated, may order, ex officio or at the request of a party, its accumulation to others with which it has substantial identity or intimate connection, provided that it is the same body that must process and resolve the procedure. No appeal shall proceed against the accumulation agreement" (the underlining corresponds to the AEPD).

Consequently, both the administrative body that initiates the procedure and the one that processes it may order its accumulation to other procedures with which it has substantial identity or intimate connection, provided that it is the same body that must process and resolve the procedure.

Article 57 of the LPACAP grants administrative bodies the power for better management of the procedures they process, allowing for their accumulation as long as they have substantial identity or intimate connection among them. Therefore, it is a possibility available to the Administration, which is not obliged to proceed with the accumulation if requested, although it is required to decide on the matter with justification, as occurs in the present sanctioning procedure.

3. On the response to the allegation seeking the accumulation of sanctioning procedures.

In this allegation, the responding party considers that: "The legal regime of the accumulation of procedures, as well as of processes, in the administrative sphere responds to the central idea of connectivity, that is, that the instructional work that must be carried out is favored by the overall appreciation of the issue raised and the possibility that the joint viewing work allows for a better assessment of the elements that enable the application of the norm to the specific case."

It should be noted that the claims of the responding party are not supported by either Article 57 of the LPACAP or by any type of jurisprudence or doctrine, in which the accumulation is attributed the purpose of providing the decision-making body with a better assessment of the elements of the case.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

29/61

The institution of accumulation is a technique of administrative simplification that allows the competent body to process and resolve in a main procedure the possibility of accumulating it with other procedures that have substantial identity or intimate connection, for the purpose of simultaneous processing and resolution. The instrumental nature of accumulation is determined by the first limit established by Article 57 of the LPACAP, which states that the body "must be the same body that processes and resolves the procedure."

It is an act of processing that cannot be appealed, as established by Article 57 of the LPACAP itself,

unlike what is provided in Article 112.1 of the same regulation, which does allow for the challenge of other acts of processing when these "directly or indirectly decide the substance of the matter, determine the impossibility of continuing the procedure, produce defenselessness or irreparable harm to legitimate rights and interests."

However, when the LPACAP excludes the possibility of appeal, it is because it applies to the accumulation of procedures, as an act of processing, none of the cases in Article 112.1 of the LPACAP that we have just reproduced.

With these arguments as a starting point, the allegations made by the responding party must be completely dismissed, to which a specific response will also be given.

A) Existence of "intimate connection" or "substantial identity."

The responding party reiterates the idea referred to in the preliminary considerations of this FIRST allegation, stating that "there was a single breach of personal data security, notified by each of the responsible parties (directly or through their data processor RSI)." It continues to assert that "the connectivity, in this case, derives from the fact that it is about determining responsibility for twenty-six legal entities, but for the same fact."

As already substantiated in the response to the preliminary considerations of this FIRST allegation, it cannot be said that there was a single breach of personal data; rather, there have been as many breaches of personal data as there are entities, all of which are independent of each other, each responsible for its own processing and regarding its own clients, whose system has suffered a security breach.

For the responding party, there is a single fact upon which responsibilities can be demanded, the security incident in the field of information technology. However, beyond the breach of personal data itself, there has been a loss of confidentiality of the personal data of the clients of each of the entities, which cannot be encompassed as a single fact or as the same fact.

In the same way, the facts relating to the actions taken after the knowledge of the security breach by each of the entities must be differentiated. Some entities notified the AEPD directly of the breach, while in others the communication was made by the data processor at the behest of each of the data controllers (in different ways and at different times).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

30/61

Lastly, some entities communicated the loss of confidentiality of their personal data to the affected parties, fulfilling the obligation established in Article 34 of the GDPR, while other entities did not send any type of communication.

All various factual elements determine that it cannot be said that, beyond the same IT vulnerability, there exists an "intimate connection" or "substantial identity" that justifies the accumulation of the proceedings.

Regarding the ruling of the TSJ Castilla-La Mancha cited in the allegations, the following clarifications should be made:

1) There is no compliance with an obligation by several persons jointly, therefore the assumption of Article 28.3 of Law 40/15 does not apply.

According to Article 28.3 of Law 40/2015, of October 1: "When the fulfillment of an obligation established by a norm with the rank of Law corresponds to several persons jointly, they will be jointly liable for the infringements that may be committed and for the sanctions that are imposed. However, when the sanction is monetary and it is possible, it will be individualized in the resolution based on the degree of participation of each responsible party."

In the present case, it cannot be said that there is joint liability, as it does not concern a joint obligation of CAJA RURAL DEL SUR with the other entities referred to in its written allegations. The facts constituting the infringement attributed to CAJA RURAL DEL SUR are in its capacity as the data controller, in accordance with the provisions of Article 4 of the GDPR, so the compliance with the principles and obligations established in the GDPR regarding the data processing of its clients

corresponds to it individually, not jointly with the other entities, since, moreover, there is no joint liability in the GDPR.

It should also be noted that the fine imposed on each entity depends on its own circumstances, such as the number of affected clients or its business volume.

The figure of joint controllers of the processing, regulated in Article 26 of the GDPR, would also not be applicable in this case, “when two or more controllers jointly determine the purposes and means of the processing, they will be considered joint controllers of the processing.” The purposes and means of the processing have been determined by CAJA RURAL DEL SUR independently of the other entities, in its capacity as the sole data controller of the personal data of its clients.

Finally, the assumption described in the ruling does not apply to CAJA RURAL DEL SUR in relation to the other entities, in which “the Administration imputes different forms of cooperation or collusion among the three defendants in relation to the same facts.” Here, there can be no talk of any type of cooperation or collusion in the facts, simply the responsibility of each of the Rural Savings Banks, and their relationship with the data processor, due to the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

31/61

regime established in the GDPR, according to which the data controller, in this case, each of the rural banks, has control and authority over the processing of personal data and assumes responsibility for compliance with the obligations imposed by the GDPR. For its part, the data processor (RSI) must only process the data in accordance with the instructions received from the controller. It cannot determine the purposes and means of processing; its role is to execute the processing as established by the controller.

2) The separate processing of files does not prevent each entity from presenting its allegations.

In the ruling of the TSJ of Castilla La Mancha referred to by CAJA RURAL DEL SUR, in the Third Legal Basis, it is stated that the plaintiff requested that all procedures be consolidated in order to adequately exercise the right of defense, “...since they referred to the same facts, and it was expressly warned that processing them separately would constitute a serious violation of the right of defense as it would prevent knowledge of the allegations of the other parties involved and the documents they might submit, all of which could be relevant for the legal qualification of the facts, the determination of the existence or not of an infringement, and of the responsible party.”

The non-consolidation of procedures cannot produce any of the harms mentioned in that paragraph of the ruling.

Regarding the documents submitted to the procedure, those related to the security incident, a series of documents were submitted by the data processor during the investigation proceedings (let us remember that both the “Security Incident Analysis Report,” dated December 9, 2022, and the “Final Security Incident Analysis Report,” dated December 30, 2022, were prepared individually for each of the rural banks, containing their specificities) whose access to the affected entity has been guaranteed through the sending, upon request, of a copy of the file. Those documents submitted by the entities responsible for processing, which affect them individually, will be taken into consideration in the corresponding procedure.

3) CAJA RURAL DEL SUR reiterates the need for the “accumulated analysis of the files,” when the ruling of the TSJ of Castilla La Mancha does not include this idea.

The need for accumulation is based on considerations other than those expressed by CAJA RURAL DEL SUR. As we have analyzed:

- Reference is made to access to the documents in the file that may be submitted by different controllers, a matter that we see is guaranteed here.

- The possibility of establishing joint liability is mentioned, which, as we have substantiated, does not apply under the regime established in the GDPR. We must not confuse joint liability under Article 28 of the LRJSP with the co-responsibility of Article 26 of the GDPR, which also does not apply in this case, since, as we said, in no case are the other rural banks co-responsible for the processing of the data of

the clients of the other entities.

- There is no type of cooperation or collusion among the different rural banks in the facts. These figures must be ruled out due to the relationship between the rural banks, which are independent entities, each responsible for the processing of their clients, nor, as we have said earlier, in terms of the special regime established by the GDPR regarding the relationship between the controller and the processor.

B) That the same body is responsible for the processing and resolution of the procedure.

The processing of the various sanctioning procedures corresponds to the same body, as CAJA RURAL DEL SUR points out, which does not determine the mandatory nature of the decision to consolidate the procedures, especially when there are no circumstances that imply the defenselessness of CAJA RURAL DEL SUR.

4. Connectivity in the sanctioning field with the guarantees of Articles 24 and 25.1 of the Spanish Constitution.

In this allegation, CAJA RURAL DEL SUR points out that the Constitutional Court has declared that both the substantive principles of Article 25.1 CE and the procedural guarantees of Article 24.2 CE are applicable, with certain nuances, to the exercise of sanctioning power.

4.1. General aspects linked to the instruction and its essential functionality.

A) Linkage of the instruction as a consequence of the factual unity.

CAJA RURAL DEL SUR cites a ruling from the Supreme Court, which states that “the initiation of a single sanctioning procedure for the commission of the same infringing act, with the aim of determining the degree of participation of each alleged responsible party in the commission of the infringement and ensuring that the resolution of the file is coherent...” According to CAJA RURAL DEL SUR, “In that case, the appellant argued that, since two files were processed, each of the responsible parties was unaware of what was in the other that could benefit or harm them. This is a concrete example of the difficulties that arise in terms of the right of defense in cases of separate processing.”

As previously justified, there are as many breaches of personal data as there are data controllers, and we cannot speak of a single infringing act, but rather a series of infringing acts attributable to a series of independent entities regarding the processing for which they are responsible, concerning their clients; nor can we speak of a “degree of participation” among the rural banks.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

33/61

the various entities, nor regarding the responsible-processor relationship.

Regarding the documents submitted to the procedure, those related to the security incident, a series of documents were provided by the data processor during the investigation proceedings, access to which has been guaranteed for all affected entities through the prior request for a copy of the file.

Furthermore, RSI submitted the “Security Incident Analysis Report,” dated December 9, 2022, as well as the “Final Security Incident Analysis Report,” dated December 30, 2022, in a detailed manner for each of the rural banks, containing their specific characteristics.

Those documents submitted by the responsible entities that affect them individually will be taken into consideration in the corresponding procedure. Additionally, any other documents that may constitute evidence relevant to the facts will be duly incorporated into the other official files, in accordance with the provisions of Article 75 of the LPACAP, stating that “the necessary instructional acts for the determination, knowledge, and verification of the facts on which the resolution must be pronounced will be carried out ex officio.”

B) Connectivity as a fundamental prerequisite for the exercise of the right to defense.

According to CAJA RURAL DEL SUR, each of the sanctioning procedures becomes “sealed,” and the evidence, allegations, and expert opinions conducted in one cannot be presented contradictorily.

However, a paragraph from the judgment transcribed by CAJA RURAL DEL SUR is fully applicable to respond to the present allegation: “it is not specified to what extent their defense had been ‘prejudiced’,” and to reject it, just as the Supreme Court understands “that the decision of the lower

court is correct, which considers that the initiation of sanctioning files against each of the companies is justified... due to the clear differentiation of the behaviors attributed and the lack of demonstration of real defenselessness - as reasoned in the contested judgment."

The Constitutional Court in its judgment No. 210/1999, dated November 29, states that constitutionally relevant defenselessness is the situation in which, following the infringement of a procedural norm, one of the parties is prevented from exercising the right to defense by eliminating or limiting their power, either to assert rights and interests for them to be recognized, or to dialectically respond to opposing positions in the exercise of the principle of contracting.

An essential characteristic of defenselessness is that it must be material in nature and not merely formal; that is, it is not sufficient for there to be a defect or procedural infringement, but there must have been an effective and real

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

34/61

right to defense (judgment of the Constitutional Court no. 90/1988, of May 13).

Well, beyond a generic allegation of potential defenselessness that could arise from the non-accumulation of the proceedings, CAJA RURAL DEL SUR is unable to present a single defect or procedural infringement that has effectively limited its right to defense, when the allegations made by the affected Rural Banks regarding the security incident are substantially similar, and they have had access to all the documentation that affects them in a common manner. In any case, the instructing body will incorporate into the procedure and inform CAJA RURAL DEL SUR of any other documents that may constitute evidence relevant to the facts.

4.2.- The intimate connection as a requirement for the individualization of responsibility for the same facts.

CAJA RURAL DEL SUR argues that, since we are dealing with a single breach of personal data, the processing of separate proceedings for each of the responsible entities may eventually lead to the determination of diverse responsibilities. The intimate connection translates into the principle of uniqueness in determining the concurrence of the facts when, as CAJA RURAL DEL SUR claims, it concerns unique facts that result in a single breach of personal data.

As previously reasoned, it cannot be said that there is a single breach of personal data, but rather as many as there are data controllers who have suffered the security incident regarding their clients' data. There cannot be different degrees of responsibility between CAJA RURAL DEL SUR and the other entities. Each of the data controllers will have a degree of responsibility that must be determined individually concerning compliance with data protection regulations, without any type of cooperation in the commission of the infringement among the different Rural Banks that could determine different degrees of responsibility among the entities, as CAJA RURAL DEL SUR claims.

CAJA RURAL DEL SUR continues its reasoning by stating that "responsibility cannot be individualized without first objectifying the sanctioning reproach, and this cannot be projected in 26 proceedings with their own dynamics, their own evidence...". Abstract arguments are still being made, such as objectifying the sanctioning reproach, regarding its own dynamics and "its own evidence," when not even allegations have been made questioning the facts and the evidence contained in the initiation agreement, nor has a request for the receipt of evidence in the procedure been made.

The fact that "a single investigation procedure" has been processed and that no requirement has been directed against the responsible data controllers but rather against the processor (RSI) does not imply the "determination..."

35/61

"unitary factual", as argued by CAJA RURAL DEL SUR. The fact that the inspection actions required information from the data processor does not determine that a single procedure must subsequently be initiated to clarify administrative responsibilities. It should be noted that Article 53, "Scope of the investigation activity", of the LOPDGDD does not impose that these must necessarily be carried out in

relation to the data controller. Therefore, there is no obligation to investigate all controllers that carry out the processing in question. Inspectors can obtain evidence by requesting information from the data processor if they deem it appropriate.

4.3 Impact on the fundamental right to good administration

According to CAJA RURAL DEL SUR, the accumulation becomes an obligation in case the absence of it could harm the rights of the administered, particularly those recognized in Article 24 of the Constitution, thereby violating the right to good administration in accordance with Article 41 of the Charter of Fundamental Rights of the European Union.

In the previous allegations, the differences between the behaviors attributed to the Rural Banks have been motivated, and it has been stated that no type of defenselessness has been caused to CAJA RURAL DEL SUR in the processing of the present procedure, having had access to all documents in the file. In fact, CAJA RURAL DEL SUR has not justified any type of defenselessness, nor does it point out any specific fact by which it has been caused defenselessness.

Finally, it is reiterated that we are not dealing with the same facts, but rather with the same technical problem that caused a security incident in the information system of each of the responsible entities in relation to their personal data processing (all of them legally and economically independent from each other), which has produced a series of personal data breaches, not a single personal data breach, but a personal data breach in each of the Rural Banks, which result in the alleged commission of a series of infringements by each of the different data controllers in relation to their personal data processing and the rights and freedoms of their clients.

“SECOND. THE NON-EXISTENCE OF GUILT OF CAJA RURAL DEL SUR IN THIS CASE”

CAJA RURAL DEL SUR has invoked various arguments to justify the absence of guilt in its conduct.

Firstly, it states that it is outside the facts attributed to it, since in this case, the processing is carried out through a data processor; which, in turn, is the processor of the entities against which the procedures are directed; and that the personal data protection regulations not only impose obligations related to compliance with the principle of confidentiality and the adoption of necessary security measures on the data processor.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
36/61

data controller, except when the processing is carried out on behalf of the controller by a processor, in which case the latter is responsible.

In this regard, it is important to recall that the role of the processor arises from the need to respond to phenomena such as the outsourcing of services by companies and other entities. Thus, in cases where the data controller entrusts a third party with the provision of a service that requires the processor to process personal data on its behalf, the processing or operations of the processing are carried out by the processor, in the name and on behalf of the controller, as if it were the controller itself carrying it out.

Therefore, the existence of a processor depends on a decision made by the data controller, who may decide to carry out certain processing operations themselves or to contract all or part of the processing to a processor.

That is to say, the processor, in order to be one, does not have any own interest regarding the outcome of the processing subject to the engagement, without prejudice to the financial compensation received for the service provided, which is what occurs in the present case. Processors have no own interest; they act on behalf of and in the name of the controller, following their orders and for their purposes, and this is what determines that they are processors from the outset.

This means that the data controller is responsible for actions contrary to the GDPR carried out by its processors, unless the latter acted as true data controllers, deciding on the purposes and means of the

processing, which has not occurred in the present case.

Thus, the CJEU ruling of December 5, 2023, in case C-683/21, regarding the question of whether an administrative fine can be imposed under Article 83 of the GDPR on a data controller in relation to processing operations carried out by a processor, determines that,

“83 Regarding, secondly, the question of whether an administrative fine can be imposed under Article 83 of the GDPR on a data controller in relation to processing operations carried out by a processor, it should be recalled that, according to the definition in Article 4, point 8, of the GDPR, a processor is understood to be ‘the natural or legal person, public authority, service, or other body that processes personal data on behalf of the data controller.’

84 Given that, as indicated in paragraph 36 of this judgment, a data controller is responsible not only for all processing of personal data that it carries out itself but also for processing carried out on its behalf, an administrative fine can be imposed on that controller under Article 83 of the GDPR in a situation where personal data is subject to unlawful processing and where...”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

37/61

It is not he, but a processor to whom he has resorted, who has carried out the processing on his behalf.

85. Notwithstanding, the responsibility of the data controller for the behavior of a processor cannot extend to situations in which the processor has processed personal data for purposes that are its own or in which it has processed such data in a manner incompatible with the framework or modalities of processing as determined by the data controller or in a manner that cannot reasonably be considered to have been consented to by the data controller. Indeed, in accordance with Article 28, paragraph 10, of the GDPR, the processor must, in that case, be considered responsible for the processing with respect to such processing.” (the emphasis is ours)

To the above, we must add the recent SAN of February 8, 2024, rec. 0002250/2021, regarding TELEFÓNICA MÓVILES ESPAÑA S.A.U, in which it is determined that,

“Well, the appellant company is the data controller, as it determines the purpose and means of the processing carried out for the purposes indicated in its Privacy Policy: “At Movistar, we process customer or user data for the provision of the service, as well as for other purposes that the customer allows or authorizes in the terms informed in this Privacy Policy or in the specific Conditions of each contracted Movistar Product or Service.”

Whereas the companies ATENTO TELESERVICIOS ESPAÑA, S.A.U., CATHPONE-NET, S.L., and THADER TELECOMUNICACIONES S.L. are considered processors.

What has been stated derives from the contracts signed by the plaintiff with the aforementioned companies.

....

Well, it has not been demonstrated that the aforementioned companies, as processors of the plaintiff, have determined the purposes and means of the processing, nor have they used the data of the plaintiff's customers for their own purposes, nor have they interacted with the data subjects outside the structure and commercial name of the appellant company, but rather they have acted under the name of the plaintiff to fulfill its purposes, using its systems to carry out operations with the customers.

Therefore, it is not possible to invoke Article 28.10 of the GDPR for a presumed attribution of responsibility to the processors that would also imply the exoneration of the data controller, that is, of the company here appealing. On the other hand, according to the aforementioned contracts, a

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

38/61

clause that impacts them the possible sanctions that the plaintiff company may suffer due to

non-compliance with data protection obligations.” (the underlining is ours)

On the other hand, the Guidelines 7/2020 of the EDPB on the concepts of “data controller” and “data processor” in the GDPR, version 2.0 Adopted on July 7, 2021, determine that,

“30 Following the line of the fact-based approach, the word ‘determine’ means that the entity that truly exercises a decisive influence over the purposes and means of processing is the controller. Generally, the processing contract establishes who is the determining party (the data controller) and who is the party that follows instructions (the data processor). Even when the data processor offers a service that is predefined in a specific manner, it must present the data controller with a detailed description of the service, and the data controller must make the final decision on the approval of how the processing will be carried out and request any changes it deems necessary. Furthermore, the data processor cannot modify, at a later time, the essential elements of the processing without the approval of the controller.

...

39. The question is where to draw the line between the decisions reserved for the data controller and those that can be left to the discretion of the processor. It is evident that decisions regarding the purpose of the processing must always correspond to the controller.

40. Regarding the determination of the means, it is necessary to distinguish between essential and non-essential means. Essential means are traditionally and inherently reserved for the data controller. These must be mandatorily determined by the data controller, although the determination of non-essential means can also be left to them. Essential means are closely linked to the purpose and scope of the processing, such as the type of personal data processed (“What data will be processed?”), the duration of the processing (“How long will it be processed?”), the categories of recipients (“Who will have access to the data?”) and the categories of data subjects (“To whom do the processed personal data belong?”). In addition to being related to the purpose of the processing, essential means are closely tied to the question of whether the processing is lawful, necessary, and proportionate. Non-essential means are related to more practical aspects of the processing itself, such as the choice of a particular type of hardware or software or the decision regarding the details of security measures, which can be left to the data processor.

41. Although decisions regarding non-essential means can be left to the data processor, the controller must still stipulate certain elements in the contract with the processor: for example, regarding the security requirement, it may be ordered to adopt all measures

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

39/61

required under Article 32 of the GDPR. The contract must also establish that the processor will assist the controller in ensuring compliance with, for example, the provisions of Article 32. In any case, the controller remains responsible for implementing appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is in compliance with the Regulation (Article 24). To this end, the controller must take into account the nature, scope, context, and purposes of the processing, in addition to the risks to the rights and freedoms of natural persons. For this reason, the controller must have complete information about the means used, as this will enable them to make an informed decision in this regard. To demonstrate the legality of the processing, it is advisable to document, in the contract or another legally binding instrument between the controller and the processor, at least the necessary technical and organizational measures.

...

74. The GDPR establishes specific obligations that directly bind processors, as specified in Section 1 of Part II of these guidelines. A processor can be held liable or sanctioned when it fails to comply with such obligations or acts outside or against the legal instructions of the controller.

...

80. Secondly, the processing must be carried out on behalf of a controller, but not under its direct authority or control. Acting “on behalf of” someone means serving the interests of another and refers to the legal concept of “delegation.” In the case of data protection regulation, the role of the processor is

to apply the instructions given by the controller, at least regarding the purposes of the processing and the essential elements of the means. The legitimacy of the processing under Article 6 and, if applicable, Article 9 of the Regulation derives from the activity of the controller, and the processor must only process the data following the instructions given by the controller. Nevertheless, as previously indicated, the instructions of the controller may leave some margin of discretion regarding how to best serve the interests of the controller, allowing the processor to choose the most appropriate technical and organizational means.

81. Acting "on behalf of" someone also means that the processor cannot carry out the processing for its own purposes. As stipulated in Article 28, paragraph 10, the processor will violate the GDPR when it does not adhere to the instructions of the controller and begins to determine its own purposes and means of processing. In such cases, the processor will be considered responsible in relation to such processing and may be sanctioned for failing to adhere to the instructions of the controller." (the underlining is ours)

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
40/61

Well, in the specific case being examined, and in view of the documentation in the file, it is established that, for the provision of IT services, CAJA RURAL DEL SUR has entered into an individualized and specific "Service Provision Contract" with RSI.

Furthermore, it has also signed, within the framework of the aforementioned contract, the "Agreement to Modify the Data Protection Clause of the Service Provision Contracts between CAJA RURAL DEL SUR and RURAL SERVICIOS INFORMÁTICOS, S.L." related to CAJA RURAL DEL SUR, which was signed on May 25, 2018, by Mr. B.B.B., on behalf of CAJA RURAL DEL SUR (data controller).

In this regard, in this "Agreement to Modify the Data Protection Clause of the Service Provision Contracts between CAJA RURAL DEL SUR and RURAL SERVICIOS INFORMÁTICOS, S.L.", CAJA RURAL DEL SUR is identified as the data controller and RSI as the data processor.

Additionally, this "Agreement to Modify the Data Protection Clause of the Service Provision Contracts between CAJA RURAL DEL SUR and RURAL SERVICIOS INFORMÁTICOS, S.L." defines the processing activities that could be carried out by RSI on behalf of CAJA RURAL DEL SUR, the types of information to be processed, and the categories of data subjects whose data could be processed. It is also determined that the security measures that must be applied by RSI to ensure an adequate level of security in accordance with Article 32 of the GDPR are those established in Annex B of the "Agreement to Modify the Data Protection Clause of the Service Provision Contracts between CAJA RURAL DEL SUR and RURAL SERVICIOS INFORMÁTICOS, S.L."

We must also highlight that Section 6 of the Agreement on "Liability" states that,

"If the Processor, or in its case, the contractors, breach this Agreement or the applicable regulations when determining the purposes and means of the processing, they will be considered responsible for the processing concerning that processing.

In the event that a supervisory authority sanctions the Data Controller as a direct consequence of the Data Processor's failure to comply with the stipulations of this Agreement, the Processor shall indemnify the Data Controller as stipulated in the liability clause of the current framework contract between the parties" (the underlining is ours).

This implies, conversely and in accordance with data protection regulations, the aforementioned judgments, and Guidelines 7/2020, that the data controller is responsible for the actions carried out by its data processor unless the latter determines the purposes and means, resulting in the fact that this last issue has not been substantiated in the processed procedure.

Therefore, in accordance with the above, CAJA RURAL DEL SUR is the data controller for the processing that is carried out, as it is the one that has decided to entrust a processor with the task.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid

treatment carried out on its behalf and for its account, is the entity that has the true capacity to exercise control over the processing of personal data, which determines what personal data will be processed on its behalf and for its account, the reasons for and the manner in which it should be processed, as it defines the purpose of the processing of personal data that its activity encompasses and chooses the means it deems appropriate.

And in accordance with all the aforementioned, in the specific case CAJA RURAL DEL SUR is responsible for the infringement of the GDPR even if the incident occurred within its data processor. In this regard, in the very Agreement of Initiation, it is indicated in section 4 relating to the Obligations of the Data Controller that:

“Corresponds to the data controller:

- a) Deliver to the Data Processor the necessary data for the provision of the service
- b) In case it is legally required, carry out a data protection impact assessment of the processing operations to be carried out by the Data Processor.
- c) Carry out the necessary prior consultations.
- d) Ensure, prior to and throughout the processing, compliance with the GDPR by the Data Processor.
- e) Supervise the processing, including conducting inspections and audits.” (the underlining is ours)

This is directly related to the principle of proactive responsibility of the data controller provided for in Article 5.2 of the GDPR, which establishes that “the data controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it (“proactive responsibility”).” This means that the controller must ensure the effective application of the principles of processing both at the time of determining the means of processing and during the processing itself, whether it carries out the processing of personal data directly or entrusts a data processor to carry it out on its behalf (for the purposes of data protection regulations, it is the same), through the articulation of a series of technical and organizational measures of all kinds, which must be subject to periodic review and updating. This implies that the aforementioned controller is the one who assumes its own responsibility by directing, reviewing, and coordinating the processing, including that of the personnel and that of the data processor providing services to it.

The Opinion 3/2010 of the Article 29 Working Party (WP29) -WP 173- issued during the validity of the repealed Directive 95/46/EC, whose provisions are applicable today, states that the “essence” of proactive responsibility is the obligation of the data controller to implement measures that, under normal circumstances, ensure that the rules on data protection are complied with in the context of the processing operations and to have available documents that demonstrate to the data subjects and the supervisory authorities what measures have been adopted to achieve compliance with the data protection rules.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

For these purposes, consideration is given to what is stated in Recital 74 of the GDPR, “Responsibility of the data controller must be established for any processing of personal data carried out by themselves or on their behalf. In particular, the controller must be obliged to implement appropriate and effective measures and must be able to demonstrate compliance of the processing activities with this Regulation, including the effectiveness of the measures. Such measures must take into account the nature, scope, context, and purposes of the processing, as well as the risk to the rights and freedoms of natural persons.” (the underlining is ours)

Completing the above and in development of Article 5.2 of the GDPR, Articles 24 and 25 of the same legal text should be cited, indicating the latter regarding “Data protection by design and by default” that the fundamental right to the protection of personal data is much more than mere technology, as its focus is on the risks to the rights and freedoms of data subjects arising from the processing of personal data,

“1. Taking into account the state of the art, the cost of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity that the processing entails for the rights and freedoms of natural persons, the data controller shall implement, both at the time of determining the means of processing and at the time of the processing itself, appropriate technical and organizational measures, such as pseudonymization, designed to effectively apply the principles of data protection, such as data minimization, and integrate the necessary safeguards into the processing, in order to comply with the requirements of this Regulation and protect the rights of data subjects.

2. The data controller shall implement appropriate technical and organizational measures to ensure that, by default, only personal data that are necessary for each specific purpose of the processing are processed...”

CAJA RURAL DEL SUR seems to argue that the responsibility lies with the data processor with whom it signed a contract and under which it was obliged to implement the appropriate security measures according to the risk; however, it is worth noting that the personal data breach occurred as a result of the decision of CAJA RURAL DEL SUR (...), subscribing for this purpose the corresponding data processing agreement with RSI where CAJA RURAL DEL SUR established the appropriate conditions. Moreover, this is in addition to what has been motivated by this Agency in preceding paragraphs regarding that CAJA RURAL DEL SUR has determined the purposes and means of the processing, that it is responsible for the processing, that it is responsible for the personal data breach in this case due to the processing actions carried out by its data processor on its behalf, and that it is subject to the obligations of the GDPR, especially regarding proactive responsibility.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

43/61

This is the responsibility of CAJA RURAL DEL SUR as it is the entity responsible for the processing and is obligated to integrate and implement data protection within all aspects of its organization, in all its areas of action, whether affecting its employees or its data processors. It must be kept in mind that ultimately the determining purpose is to guarantee the protection of the data subject, as the focus is on the risks to the rights and freedoms of the data subjects arising from the processing of personal data carried out by the data controller.

Consequently, the data controller must conduct a risk analysis regarding the rights and freedoms of individuals in data processing, implementing appropriate technical and organizational measures to apply the principles of data protection and integrate the necessary safeguards in the processing, in order to comply with the requirements of the GDPR, being able to demonstrate that the processing is in accordance with the provisions of the aforementioned regulation. And in light of the principle of proactive responsibility (art. 5.2 GDPR), the data controller must be able to demonstrate that it has taken into account all the elements provided for in the GDPR.

Therefore, all of this merely reflects a lack of diligence on the part of the investigated entity in ensuring adequate security relative to the risks of the data processing it carries out. In this regard, it should not be forgotten that the affected database contains personal data of thousands of customers, which constitutes large-scale processing, to which access is also made from web applications, that is, from the internet, with a significant exposure surface, posing greater risks to the data subjects, which requires appropriate technical and organizational measures of all kinds, including security measures, specifically aimed at ensuring that there is no unauthorized access to such personal data.

As has been demonstrated and argued throughout this sanctioning procedure, it is considered that appropriate security measures were not implemented in this case to guarantee the security of the personal data of the customers, which resulted in unauthorized access to the personal data of the customers of CAJA RURAL DEL SUR. Therefore, responsibility is not being demanded solely as a consequence of a result caused by a cyberattack.

It is much more than that; it is a failure to comply with the obligations imposed by the GDPR.

Therefore, it is emphasized that the data controller must establish clear modalities for such assistance

in its relationship with the data processor and provide precise instructions to the data processor on how to comply with them adequately and document it beforehand through a contract or another (binding) agreement and also subsequently during the validity of the same and verify at all times during the execution of the contract its compliance in the manner established therein.

It suffices to bring to mind the content of the STS 1562/2020, of June 15, 2020, rec. 601/2019, which states the following:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

44/61

"In this regard, the Judgment of the Supreme Court of June 5, 2004, which confirms, in cassation for the Unification of Doctrine, that of this National Court of October 16, 2003, echoing the arguments made by this Chamber, refers to the differentiation of two responsible parties based on whether the decision-making power is directed towards the file or the data processing itself. Thus, the data file controller is the one who decides the creation of the file and its application, as well as its purpose, content, and use, that is, the one who has decision-making capacity over all the data recorded in that file. The data processor, however, is the subject to whom decisions regarding the specific activities of a particular data processing operation can be attributed, that is, regarding a specific application. This would pertain to all those cases in which the decision-making power must be differentiated from the material execution of the activity that comprises the processing. With this, as also argued by the Supreme Court ruling of April 26, 2005 (cassation for unification of doctrine 217/2004), the Spanish legislator aims to adapt to the requirements of Directive 95/46/EC, which seeks to provide a legal response to the increasingly frequent phenomenon of the so-called outsourcing of IT services, where multiple operators act, many of whom are insolvent, created with the aim of seeking impunity or irresponsibility for those who follow them in the subsequent links of the chain. Currently, the new Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons in relation to the processing of personal data (which repeals Directive 95/46/EC, and is directly applicable from May 25, 2018) also distinguishes between the roles of the controller and the processor. The former is defined in paragraph 7) of Article 4 as "a natural or legal person (...) that determines the purposes and means of the processing." And the processor is defined in paragraph 8) of the same Article 4 as one who "processes personal data on behalf of the data controller."

This is in relation to Articles 24 and 28 of the same European Data Protection Regulation. The controller and the processor of data are undoubtedly also responsible for violations in the area of data protection, in this new regulatory framework, in accordance with the provisions of Article 82.2 of the aforementioned Regulation (EU) 2016/679, which states: Any controller participating in the processing operation shall be liable for damages caused in the event that such operation does not comply with the provisions of this Regulation. A processor shall only be liable for damages caused by the processing when it has not complied with the obligations of this Regulation specifically directed at processors or has acted outside or against the legal instructions of the controller. It follows from all of the above that the involvement, in the present case, of a processor ZZZZ does not exempt the entity XXXX, now the appellant, from liability, despite the strength of the clauses contained in the contract and its annex signed by both companies (proven facts 9 and 10), as the personal data processed was for the purpose of carrying out an advertising campaign regarding car and motorcycle insurance marketed by XXXX, ultimately benefiting said XXXX, being that acting entity the one that ultimately determines the purposes and means of the..."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

45/61

repeated data processing, for which it cannot be exempted from liability."

The Supreme Court continues, in relation to the possible exemption from liability alleged regarding the contract signed for "data processing," as follows:

"The sanctioned conduct of obstruction or impediment by XXXX of its client's exercise of the right to object to the processing of their data is manifested in that this company did not adopt any measures or precautions to prevent the sending of advertising to its client's email addresses by those companies to which it entrusted the execution of advertising campaigns.

The adoption of the necessary measures or precautions to ensure the effectiveness of the right to object to the processing of their data by XXXX, as the data controller, remains applicable even if the advertising campaigns are not carried out based on its own data files, but rather with databases from other companies contracted by XXXX. In this case, it was established that the appellant did not communicate to the companies with which it contracted the provision of advertising services the complainant's opposition to receiving advertising from the Mutual, nor did it ultimately take any precautions to ensure the exclusion of its client from the advertising mailings contracted with third parties."

Regarding the application of the principle of culpability in the field of sanctioning law regulated by the GDPR, the investigated entity brings up the doctrine established by the CJEU ruling of December 5, 2023 (case C-807/21, Deutsche Wohnen SE and Staatsanwaltschaft Berlin).

Thus, it is pertinent to ask what the parameters of due diligence that the investigated entity should have observed in relation to the examined conduct are. The answer is that the diligence it should have observed is that which was necessary to fulfill the obligations imposed by Articles 5.2, 24, and 25 of the GDPR, in light of the doctrine of the National Court and the jurisprudence of the Supreme Court. The SAN of October 17, 2007 (rec. 63/2006) is fully applicable to the case, which, after referring to the fact that entities whose activities involve continuous processing of data from clients and third parties must observe an adequate level of diligence, states:

"[...] the Supreme Court has understood that there is negligence whenever a legal duty of care is neglected, that is, when the offender does not behave with the required diligence. In assessing the degree of diligence, the professionalism or lack thereof of the subject must be particularly weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must insist on rigor and exquisite care to comply with the legal provisions in this regard."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

46/61

Furthermore, the National Court in matters of personal data protection has declared that "simple negligence or failure to comply with the duties imposed by the Law on those responsible for files or data processing is sufficient to require extreme diligence..." (Judgment of the National Court of June 29, 2001).

Regarding the allegation made that the breach of personal data occurred within the framework of the data processing for which RSI was responsible, to the extent of carrying out the investigative actions exclusively with that entity, it should be noted that the preliminary investigative actions are precisely carried out to clarify the facts and circumstances of what occurred, gathering more information in order to determine whether or not there is a possible infringement of the data protection regulations. In this sense, the initiation of preliminary investigations and their execution, a power of the AEPD, does not prejudge anything but allows for the determination of the facts that occurred and the gathering of necessary information wherever it may be found to determine whether there are indications of an infringement or not. Even after such an investigation, it may be that the actions are archived because, based on the information gathered, it is understood that there are no indications of infringement. This has not happened in the present case.

Consequently, the allegations must be dismissed since the investigated entity has infringed the obligations imposed by the GDPR as the responsible party for the treatments carried out in its name and on its behalf, in relation to the responsibilities required of every data controller by Article 24 of the

GDPR. Therefore, the allegations must be dismissed, noting that the arguments presented do not undermine the essential content of the infringement declared to have been committed nor do they constitute sufficient justification or exculpation.

“THIRD. ON THE IMPACT ON THE PRINCIPLES OF SANCTIONING LAW DERIVED FROM THE INTERPRETATION MADE BY THE AEPD”

CAJA RURAL DEL SUR considers that it has not committed any infringement of the Data Protection regulations, much less the simultaneous infringement of Articles 5.1 f) and 32 of the GDPR, as the triple identity of subject, fact, and protected legal asset coincides; there is no doubt that in this case the principle of non bis in idem should be applied, with the imposition of the sanction only for Article 5.1.f) as it is the more serious of the two infringements attributed.

And in the event that the AEPD appreciates the violation, it should subsidiarily appreciate a medial concurrence as one of the infringements is subsumed and embedded in the other, according to what is provided in Article 29.5 of the LRJSP, “When the commission of one infringement necessarily derives from the commission of another or others, only the sanction corresponding to the most serious infringement committed shall be imposed.”

“1. Violation of the principle of non bis in idem in the application of Articles 5.1 f) and 32 of the GDPR”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

47/61

In this regard, and in relation to the allegation made by CAJA RURAL DEL SUR against the initiation agreement, it should be indicated that, having proposed the filing of the initially imputed infringement of Article 32 of the GDPR, it is no longer necessary to respond to these allegations, since the imputation of the infringement of Article 5.1.f) of the GDPR no longer coincides with the imputation of the infringement of Article 32 of the GDPR.

“FOURTH. ON THE ALLEGED VIOLATION OF ARTICLE 32.1 OF THE GDPR”

CAJA RURAL DEL SUR has stated that the AEPD considers the alleged violation of Article 32 of the GDPR to be “evidenced,” that is, it considers the alleged insufficiency of the security measures adopted to be evident due to the occurrence of the personal data breach, making exclusive reference to the report on the breach contained in the administrative file, while disregarding all the measures adopted as well as the audit carried out, and that there is a misinterpretation of what occurred in the RSI systems.

Well, as indicated, upon reviewing the allegations made by the responding party, and in consideration of the same, reviewing the documentation in the administrative file and that provided by the responding party, it is evident that all the technical and organizational security measures whose absence has been proven have had a direct impact on the personal data breach, without there having been a violation, in this specific case, of Article 32 of the GDPR, as the absence of other independent technical and organizational security measures unrelated to the personal data breach has not been demonstrated. Regarding the sufficiency of the security measures in relation to the non-compliance with Article 5.1.f) of the GDPR, we refer to what has already been indicated in the legal basis IV of this resolution proposal, where it is explained and detailed why they were neither sufficient nor appropriate.

Furthermore, we will indicate that it is true that it is recorded that, both prior to and subsequent to the security incident, the investigated entity conducted audits and reviews by third-party specialists aimed at detecting vulnerabilities exclusively related to the security of the information systems; but it is also true that despite the existence of such investigations, controls, and verifications, they were unable to locate and reveal the existing vulnerabilities, as is recorded in the proven facts.

On the other hand, CAJA RURAL DEL SUR claims that RSI holds various security certifications, referenced in the third proven fact of this resolution proposal.

Article 28 of the GDPR, Processor, in its paragraph 5, establishes that:

“5. The adherence of the processor to a code of conduct approved pursuant to Article 40 or to a certification mechanism approved pursuant to Article...”

C/ Jorge Juan, 6

www.aepd.es
28001 – Madrid
sedeagpd.gob.es
48/61

42 may be used as an element to demonstrate the existence of the sufficient guarantees referred to in paragraphs 1 and 4 of this article.” In this sense, to demonstrate that the processors offer the suitability and guarantees required by the GDPR, adherence to a certification mechanism may be used as an additional element to establish the existence of sufficient guarantees to apply appropriate technical and organizational measures to protect personal data.

And this is because, although a data processor may be certified in data protection, this certification does not absolutely prove that sufficient guarantees in relation, in this case, to the provision of Article 28.1 of the GDPR, have been implemented and are effectively operating throughout the entire processing cycle and during the time in which the processing is taking place.

In the field of data protection, this type of instrument is a voluntary compliance mechanism in which specific rules are established with the aim of contributing to the correct application of the GDPR and the LOPDPGDD.

According to the GDPR, the data controller must adopt appropriate measures, including the selection of processors, in such a way that it guarantees and is in a position to demonstrate that the processing is carried out in accordance with the GDPR (principle of active accountability).

It is true that the certifications that the data processor RSI appears to hold are mentioned in the data processing agreement; however, let us note that all the certifications listed in the third proven fact are not the certifications provided for in either Article 28 or Article 42 of the GDPR, they are not data protection certifications, but rather certifications of information security or related to other obligations that must be fulfilled by the controller or the processor based on other regulations distinct from data protection.

Thus, in the “Agreement to Modify the Data Protection Clause of the Service Provision Contracts,” signed between CAJA RURAL DEL SUR and RSI, in its “Annex B - Security Measures to the Agreement to Modify the Data Protection Clause of the Service Provision Contracts,” it is indicated that RSI holds the following certifications:

(...)

In addition to the fact that its mention in the processing agreement is not accompanied by the certification itself for the purposes of verifying that it has indeed been certified and to see exactly what it is certified for, at what moment it was certified, and whether at the time of the personal data breach the certification was still valid (since certifications have a validity period) - said certification is not for data protection.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
49/61

In this regard, the report of the Legal Cabinet 170/2018 of the AEPD establishes the difference between information security and the protection of personal data. Thus, it is indicated that, “Prior to analyzing the specific issue raised in the consultation, this Legal Cabinet finds it appropriate to make a prior reference to (...).

As for information security, it encompasses the set of techniques and measures aimed at ensuring the confidentiality, integrity, and availability of information and data important to any organization, regardless of their format. (...)

On the contrary, the protection of personal data of individuals is configured as a true fundamental right that finds its foundation in Article 18.4 of the Spanish Constitution, according to which “the law will limit the use of computing to guarantee the honor and personal and family privacy of citizens and the full exercise of their rights.” This has been recognized by our Constitutional Court, highlighting in Judgment 94/1998, of May 4, that the aforementioned Article 18.4 “not only entails a specific instrument for the protection of citizens' rights against the wrongful use of computing technology, but

also enshrines an autonomous fundamental right to control the flow of information concerning each person - to 'privacy' according to the neologism stated in the Explanatory Memorandum of the LORTAD - whether or not they belong to the strictest realm of intimacy, in order to preserve the full exercise of their rights."

This is reflected in the Preamble of the Organic Law Project on Personal Data Protection and Guarantee of Digital Rights, which for its clarity is transcribed below:

"The protection of individuals in relation to the processing of personal data is a fundamental right protected by Article 18.4 of the Spanish Constitution. In this way, our Constitution was a pioneer in recognizing the fundamental right to the protection of personal data when it stipulated that 'the law will limit the use of computing to guarantee the honor and personal and family privacy of citizens and the full exercise of their rights.' It echoed the work developed since the late 1960s in the Council of Europe and the few legal provisions adopted in countries around us.

The Constitutional Court stated in its Judgment 94/1998, of May 4, that we are faced with a fundamental right to data protection, which guarantees the individual control over their data, any personal data, and over its use and destination, to prevent the illicit trafficking of the same or harm to the dignity and rights of those affected; thus, the right to data protection is configured as a citizen's power to oppose the use of certain personal data for purposes other than those that justified its acquisition. For its part, in Judgment 292/2000, of November 30, it considers it as an autonomous right and

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
50/61

independent, consisting of a power of disposition and control over personal data that empowers the individual to decide which of that data to provide to a third party, whether the State or a private individual, or which data this third party may collect, and that also allows the individual to know who possesses that personal data and for what purpose, being able to oppose such possession or use. At the legislative level, the specification and development of the fundamental right to the protection of individuals in relation to the processing of personal data took place at its origins through the approval of Organic Law 5/1992, of October 29, regulating the automated processing of personal data, known as LORTAD. Organic Law 5/1992 was replaced by Organic Law 15/1999, of December 5, on the protection of personal data, in order to transpose Directive 95/46/EC of the European Parliament and of the Council, of October 24, 1995, regarding the protection of individuals with regard to the processing of personal data and the free movement of such data. This organic law represented a second milestone in the evolution of the regulation of the fundamental right to data protection in Spain and was complemented by an increasingly abundant jurisprudence from the contentious-administrative jurisdiction.

On the other hand, it is also included in Article 8 of the Charter of Fundamental Rights of the European Union and in Article 16.1 of the Treaty on the Functioning of the European Union. Previously, at the European level, the aforementioned Directive 95/46/EC had been adopted, whose purpose was to ensure that the guarantee of the right to the protection of personal data did not constitute an obstacle to the free movement of data within the Union, thus establishing a common space of guarantee of the right that simultaneously ensured that in the case of international data transfers, their processing in the destination country was protected by safeguards adequate to those provided for in the directive itself. And in this same sense, Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of individuals with regard to the processing of their personal data and on the free movement of such data, which repeals Directive 95/46/EC (General Data Protection Regulation, GDPR), states that its purpose is "to protect the fundamental rights and freedoms of natural persons and, in particular, their right to the protection of personal data" (Article 1.2), highlighting in its Recital 1 that "the protection of individuals with regard to the processing of personal data is a fundamental right" and in its Recital 10 that "to ensure a consistent and high level of protection of individuals and to eliminate obstacles to the free movement of personal data within the

Union, the level of protection of the rights and freedoms of individuals with regard to the processing of such data must be equivalent in all Member States. It must be ensured throughout the Union that the application of the rules for the protection of the fundamental rights and freedoms of individuals with regard to the processing of personal data is consistent and homogeneous.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

51/61

Consequently, the right to the protection of personal data of individuals is a fundamental right and, therefore, situated at the highest level of legal protection, which is currently regulated directly by community legislation, with the aforementioned GDPR establishing a set of principles, rights, obligations, and an organizational structure aimed at guaranteeing this fundamental right. Among these, information security appears as an additional obligation for data controllers and processors, who must apply appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which will include, among other factors, “the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services” and “the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident” (Article 32.2. b) and c) of the GDPR).

Therefore, there is no doubt that the guarantee of the security of personal data acquires special significance regarding its protection, but without this being limited exclusively to the field of the security of such information, as the protection of personal data has a much broader scope that encompasses, as we mentioned, a set of principles, rights, and obligations that are much wider. (the underlining is ours)

This issue is substantial since the certification mentioned in the service contract does not serve as an element to “demonstrate the existence of sufficient guarantees referred to in paragraphs 1 and 4” of Article 28 of the GDPR, as it does not pertain to data protection. The difference in approach between mere information security and data protection is extremely important, as while the focus of the former is exclusively on information security, the risk-based approach of the GDPR (which is much broader as it focuses on the risks to the rights and freedoms of data subjects arising from the processing of personal data) is centered on individuals, with security being an additional obligation within those of the GDPR to achieve the protection of individuals in the terms of the recitals, particularly 1 and 10, as well as in accordance with the provisions of Article 1 of the GDPR.

Within the management of GDPR compliance lies risk management, on which information security pivots, and not the other way around.

(...)

CAJA RURAL DEL SUR argues that the security measures initially implemented by RSI are outlined in the service contract signed with RSI and that the attackers could have legitimate credentials for access and that the attack is not due to the weakness of the implemented systems.

As a preliminary matter, we must refer to the proven facts and the description of the personal data breach to understand how and why the personal data breach occurred.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

52/61

Regarding the security measures included in the "Amendment Agreement of the Data Protection Clause of Service Provision Contracts," when referring to security measures, there is a reference to those listed in Annex B - Security Measures to the Amendment Agreement of the Data Protection Clause of Service Provision Contracts.

Well, from a detailed examination of the citation of the same, as we are unaware of their development in relation to the specific measures implemented, we can again verify that they are measures that refer generally to information security and not to data protection (...), a substantially different issue from

data protection. (...). A policy is a central and guiding instrument of an organization in which the responsible party addresses its objectives and establishes procedures, resources, and mechanisms to carry it out, which requires subsequent detailed development. It is not the same to address mere information security as it is to address the protection of a fundamental right such as data protection, given the focus and purpose of each of them.

Furthermore, the fact that a list of measures appears in a service contract (also in this specific case, information security measures) does not imply that they guarantee appropriate security as determined by Article 5.1.f) of the GDPR, because one must consider the focus on the protection of the rights and freedoms of the data subjects, and the measures implemented do not necessarily serve to fulfill such an objective if they have not been designed and implemented from the perspective required by the GDPR.

“FIFTH. ON THE ALLEGED VIOLATION OF ARTICLE 5.1.f) OF THE GDPR”

CAJA RURAL DEL SUR considers the contradiction in which the Initial Agreement incurs by stating that “the identification of a personal data breach does not directly imply the imposition of a sanction by this Agency, as it is necessary to analyze the diligence of the controllers and processors and the security measures applied,” when subsequently it understands that Article 5.1.f) has been violated as a consequence of the mere fact that the breach has occurred.

On this particular matter, we refer to legal basis IV explaining the concurrence of the infringement of Article 5.1.f) of the GDPR in this specific case, where it is detailed that the infringement has not been committed merely due to the result of loss of confidentiality, even though it is a result-based infringement.

The Judgment of the Constitutional Court (STC) 292/2000, in its analysis of the “content” of the fundamental right to data protection, refers to the power of disposition and control that belongs to the data subject over the possible use or uses of their data by a third party. Legal Basis seventh states: “[...] it turns out that the content of the fundamental right to data protection consists of a power of disposition and control over personal data that empowers the person to decide which of those data to provide to a...

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
53/61

third party, whether the State or an individual, or what this third party may collect, and that also allows the individual to know who possesses that personal data and for what purpose, being able to oppose that possession or use. These powers of disposition and control over personal data, which constitute part of the content of the fundamental right to data protection, are legally specified in the ability to consent to the collection, obtaining, and access to personal data, its subsequent storage and processing, as well as its possible use or uses by a third party, whether the State or an individual.” The obligation of confidentiality that Article 5.1.f) of the GDPR imposes on the data controller is an obligation of result, such that for the provision to be considered infringed, the confidentiality of the data must be breached.

As specified in the Supreme Court ruling of February 15, 2022, rec. of cassation 7359/2020,

“The obligation to adopt the necessary measures to ensure the security of personal data cannot be considered an obligation of result, which implies that if a leak of personal data to a third party occurs, there is responsibility regardless of the measures adopted and the activity carried out by the data controller.

In obligations of result, there is a commitment to fulfill a specific objective, ensuring the achievement or proposed result, in this case, guaranteeing the security of personal data and the non-existence of leaks or security breaches (...). (the underlining is ours)

It should be noted that the data controller incurs in contradiction when, on the one hand, it considers that there has been no violation of data protection regulations and believes that everything should be redirected to the filing of the case, while on the other hand, it confirms and indicates that it is evidenced in the case file “that the attacker could access the data, but in no case alter it,...”; however, as such

(...)."

(...).

Regarding the allegations reiterated by the defendant party that the infringements attributed concerning Article 5.1.f) and 32 of the GDPR are identical since we are dealing with the same fact subject to double attribution, we refer to what has already been indicated in the previous legal grounds regarding the proposal to file the infringement of Article 32 of the GDPR.

In light of the above, it is established that CAJA RURAL DEL SUR has violated the principle of confidentiality and integrity of the data, a principle enshrined in Article 5.1.f) of the GDPR, an infringement classified in Article 83.5.a) of the GDPR.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

54/61

"SIXTH. ON THE ALLEGED VIOLATION OF ARTICLE 33 OF THE GDPR

Regarding the allegations made by the claimant concerning the attribution of Article 33 of the GDPR, a response is no longer necessary, as, as stated in the proven facts and in the preceding legal grounds, the filing of the initially attributed infringement is proposed in light of the specific circumstances of the case previously expressed.

"SEVENTH. VIOLATION OF THE PRINCIPLE OF PROPORTIONALITY IN THE DETERMINATION OF SANCTIONS"

CAJA RURAL DEL SUR has argued that if it is considered that there has been a violation of data protection regulations, particular consideration should be given in determining the sanction that may be imposed by applying the principle of proportionality.

It should be noted that Article 83.1 of the GDPR states that "Each supervisory authority shall ensure that the imposition of administrative fines in accordance with this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are in each individual case effective, proportionate, and dissuasive."

Fines, therefore, according to the invoked provision, must be effective, proportionate, and dissuasive for achieving the purpose intended by the GDPR.

It is true that for this system to function with all its guarantees, it is necessary for several elements to be deployed in a complete and integral manner. The application of rules external to the GDPR regarding the determination of fines in each of the Member States applying their national law, whether due to aggravating or mitigating circumstances not provided for in the GDPR - or in the LOPDGDD in the Spanish case as allowed by the GDPR itself - would undermine the effectiveness of the system, losing its meaning, its teleological purpose, the will of the legislator, resulting in fines imposed for different infringements ceasing to be effective, proportionate, and dissuasive. And in this way, it would also deprive the interested parties of the effective guarantee of their rights and freedoms, weakening the uniform application of the GDPR. The mechanisms for protecting the rights and freedoms of citizens would be diminished and it would be contrary to the spirit of the GDPR.

The GDPR is endowed with its own principle of proportionality that must be applied in its strict terms. Regarding the principle of proportionality of sanctions, the National Court in numerous rulings has stated that the principle of proportionality cannot be exempt from judicial control, as the margin of appreciation granted to the Administration in imposing sanctions within the legally established limits must be developed by weighing, in any case, the circumstances

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

55/61

concurrent, in order to achieve the necessary and appropriate proportion between the alleged facts and the responsibility required, given that any sanction must be determined in accordance with the

nature of the infringement committed and based on a criterion of proportionality in relation to the circumstances of the act. Thus, proportionality constitutes a normative principle that is imposed on the Administration and that limits the scope of its sanctioning powers.

Well, in accordance with the circumstances present in this case, which have been meticulously and appropriately evaluated, this resolution does not violate the principle of proportionality in the determination of the imposed sanctions, resulting in a balanced and proportionate response to the severity of the infringement committed, the importance of the facts, as well as the circumstances taken into account to grade the sanction, without any reasons being appreciated that further justify the reduction made, especially considering the amount to which such sanctions may rise in accordance with Article 83.5 of the GDPR, which provides for the infringement of Article 6.1 of the GDPR, “with administrative fines of up to €20,000,000 or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount.”

In this case, the entity under investigation is a large company within its sector of activity; in accordance with the proven fact twenty-first, its turnover (gross margin) during the year 2022 amounted to €200,000,000, resulting in the fine imposed for the infringement of Article 5.1.f) of the GDPR amounting to €20,000, which would be in the lower range of the possible administrative fine that could be imposed on the data controller and far from the maximum of 4% of the total annual global turnover of the previous financial year considering the turnover.

- CAJA RURAL DEL SUR considers regarding the circumstance derived from the nature, severity, and duration of the infringement that the mere reference to the provision subject to the infringement is taken as an aggravating factor.

However, such an argument cannot be accepted as inconsistent; in fact, what is sought to be highlighted is that the infringement of Article 5.1.f) affects one of the basic principles on which the regulations on personal data protection are based, confidentiality, and this violation is heightened and aggravated by the number of affected individuals by the incident, the damages caused (irreversible loss of power and control over personal data by the clients) and its duration, as (...).

- CAJA RURAL DEL SUR considers regarding the intentionality or negligence in the infringement that the absence of diligence in its actions is due exclusively to its condition as a financial entity and, in purity, the aforementioned statement is surprising.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

56/61

Considering that in the conduct of CAJA RURAL DEL SUR there is an element of culpability, which is indispensable to demand sanctioning responsibility, in this case, it is also specified in a very serious lack of diligence in complying with the principle of confidentiality of personal data, as has been demonstrated throughout the procedure.

RSI has pointed out that:

(...)

Furthermore, the lack of diligence demonstrated in the infringing conduct for which it is held responsible must be classified as very serious; CAJA RURAL DEL SUR is obliged under Article 5.2 of the GDPR to carry out the appropriate activity to comply with the principles of data protection, particularly, for our purposes, the principle of confidentiality, and to be in a position to demonstrate its compliance.

- CAJA RURAL DEL SUR considers that taking its banking activity into account as an aggravating factor is a sort of objective aggravation; in the first instance, it is not a matter related to the specific activity carried out by a particular entity, but rather the aggravating factor provided for in Article 76.2.b) of the LOPDGDD operates when the infringer's activity is linked to the processing of personal data, and it is obvious that, in relation to the present data controller, its activity, in this specific banking case, is clearly linked, directly, to multiple processing of personal data affecting thousands of clients. In this regard, the National Court has considered it correct to appreciate the aggravating factor

provided for in Article 76.2.b) of the LOPDGDD whenever the aforementioned link exists, and it has considered this in numerous rulings, including the one dated 04/07/2024, (rec. 382/2022) which states regarding the cited circumstance that:

“As well, the aggravating factor of the continued nature of the infringement, included in Article 76.2.a) of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights, can also be appreciated, referring to it when we analyze the application of the GDPR to the infringement at hand. As well as the appreciation of the link between the infringer's activity and the processing of personal data (Article 72.2.b) of Organic Law 3/2018, of December 5), due to the fact that the activity of the appellant is linked to the processing of data from both clients and third parties; this link is well known as the entity, due to its activity, is in constant contact with clients and third parties handling a large volume of data, which imposes a greater duty of diligence.” (the underlining is ours).

Finally, CAJA RURAL DEL SUR considers that the AEPD, in modulating its responsibility, has not taken into account elements to mitigate it, such as evidentiary elements that demonstrate compliance with the highest standards in security matters, nor the fact that the measures adopted were subjected to a system of periodic auditing or that RSI resolved the vulnerability that constituted the security breach; it is sufficient to refute what has been stated by referring to the content of the proven facts and regarding the last issue raised, to refer to what the data processor itself indicates in its notification of the personal data breach, dated 14/12/2022, and the document of 10/01/2023 transferring the final report, in which it responds to the following questions:

- Could the breach have been avoided by adopting any additional security measures?

Yes

- Did the incident occur due to any failure, deficiency, or non-compliance with implemented security measures?

Yes

And regarding the actions taken after the incident:

- Have you adapted/improved your security procedures and policies?

No

Therefore, the allegation made regarding the violation of the principle of proportionality cannot be accepted.

In light of the above, the following

PROPOSAL FOR RESOLUTION

is issued by the Director of the Spanish Agency for Data Protection to sanction CAJA RURAL DEL SUR, S.C.C. with NIF F91119065,

- For the alleged infringement of Article 5.1.f) of the GDPR, classified in Article 83.5.a) of the GDPR, with a fine of TWENTY THOUSAND EUROS (20,000 euros).

The Director of the Spanish Agency for Data Protection shall proceed to archive, regarding CAJA RURAL DEL SUR, S.C.C. with NIF F91119065,

- For the alleged infringement of Article 32.1 of the GDPR, classified in Article 83.4.a) of the GDPR.

- For the alleged infringement of Article 33 of the GDPR, classified in Article 83.4.a) of the GDPR.

Likewise, in accordance with the provisions of Article 85.2 of the LPACAP, it is informed that it may, at any time prior to the resolution of this matter,

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

58/61

procedure, to carry out the voluntary payment of the proposed sanction, which will imply a reduction of 20% of the amount thereof. With the application of this reduction, the total sanction would be established at SIXTEEN THOUSAND € (16,000 euros) and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures. The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that you choose to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of article 85.2 cited, you must make it effective by depositing it into the restricted account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the amount of the sanction. Likewise, you must send the proof of deposit to the General Subdirectorate of Inspection to proceed to close the file.

By virtue of this, you are notified of the above, and the procedure is made known to you so that within TEN DAYS you may allege whatever you deem appropriate in your defense and present the documents and information you consider pertinent, in accordance with article 89.2 of the LPACAP.

926-070623

D.D.D.

INSPECTOR/INSTRUCTOR

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

59/61

ANNEX

Index of the file EXP202400062

(...)

>>

SECOND: On December 20, 2024, the party being claimed has proceeded to pay the sanction in the amount of 16,000.00 euros making use of the reduction provided in the previously transcribed resolution proposal.

THIRD: The payment made entails the renunciation of any action or appeal in the administrative route against the sanction, in relation to the facts referred to in the resolution proposal.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides the following:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the second has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure,

C/ Jorge Juan, 6

www.aepd.es
28001 – Madrid
sedeagpd.gob.es
60/61

except for matters relating to the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.

III

Voluntary Payment

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified proposal for resolution allowed for the voluntary payment of the proposed sanction, which would entail a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 16,000.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the aforementioned proposal for resolution, and before a resolution was issued by this authority, the party being claimed, on December 20, 2024, proceeded to make the voluntary payment, availing itself of the 20% reduction and renouncing any action or administrative appeal.

It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the high court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any others arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the proposal for resolution transcribed in this resolution. The sum of the aforementioned amounts yields a total of 20,000.00 euros.

After the party being claimed proceeded with the prompt payment, although without acknowledgment of responsibility, it is hereby resolved, pursuant to Article 85 of the LPACAP, to reduce the aforementioned total by 20%, resulting in a final amount of 16,000.00 euros.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

61/61

SECOND: TO DECLARE the termination of procedure EXP202400062, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO NOTIFY this resolution to CAJA RURAL DEL SUR, S.C.C.

FOURTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment on the withdrawal or renunciation of any action or administrative appeal, this authority accepts the express renunciation stated by the party being claimed, consequently precluding the filing of an optional appeal for reconsideration against this resolution, all without prejudice to the possibility of resorting to the contentious-administrative jurisdiction. Consequently, taking into account the provisions of Article 90 of the LPACAP, since no administrative

appeal is possible due to the express renunciation, this resolution will be fully enforceable from the notification thereof.

However, in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

968-15012025

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es